

BROWN v. OLAN

22CF13738

PLAINTIFF'S MOTION TO ENFORCE STIPULATION AND ORDER

This is an action for Damages, Temporary Restraining Order, and Permanent Injunction (Trespass) against defendant. This matter was settled at a Mandatory Settlement Conference on March 20, 2023. Defendant agreed to remove the wood fence at his expense, and Plaintiff agreed to remove the perforated pipe at his expense and the wrought iron fence was to remain in place. Both parties were to allow all efforts for the other party to complete their tasks with no harassment. On May 3, 2023, the parties executed and filed a Stipulation and Order formalizing the agreement.

An enforceable settlement agreement under Code of Civil Procedure (CCP) §664.6 must either be entered into orally before a court or be in writing and signed by the parties. (See *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.) These alternative requirements aim to minimize misunderstandings. Direct participation by the litigants ensures that the settlement results from their mature reflection and deliberate assent. (See *Id.*; *Levy v. Superior Court* (1995) 10 Cal.4th 578, 585. fn. omitted.)

In this case, the parties announced their settlement terms and agreement in open court, resulting in a Minute Order that specified the terms of the settlement. The court directed plaintiff's counsel to prepare a formal agreement. Both parties then executed the written settlement terms, which the court signed, thereby adopting the terms of the settlement agreement and making them enforceable under CCP section 664.6.

The defendant committed to relocating a wooden fence that encroached on the plaintiff's property. The defendant participated in a "walkthrough" with the surveyor to verify the necessary fence relocation. However, the retaining wall and iron fence, which encroached on the plaintiff's land, were not mandated to be moved. The parties were instructed to remove drainage pipes causing water to drain onto each other's property. Instead of removing the encroaching wooden fence and drainpipes, the defendant extended the encroaching wooden fence alongside the iron fence.

Plaintiff's Motion to Enforce Stipulation and Judgment is **GRANTED**. Defendant Olan is ordered to comply with the Stipulation and Order by removing the pipes that drain onto Plaintiff's property and either removing the new fencing or moving it to the property line and removing the wrought iron fencing left on Plaintiff's property. Although CCP Section 664.6 provides for an award of reasonable attorney's fees associated with a motion to enforce, plaintiff's counsel failed to provide the requisite declaration detailing hourly rate and hours spent on the motion; based upon this shortcoming, the Request for Attorney's Fees is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.

HUSTED v. COUNTY OF CALAVERAS BEHAVIORAL AND MENTAL HEALTH, et al

20CV44568

DEFENDANT COUNTY OF CALAVERAS' DEMURRER AND MOTION TO STRIKE PLAINTIFF'S FIFTH AMENDED COMPLAINT

This action seeks wrongful death damages concerning plaintiff's son. Plaintiff filed a Fifth Amended Complaint (5AC) on January 16, 2024. Defendant County of Calaveras timely Demurred and filed a Motion to Strike.

The court **GRANTS** the defendant's Request for Judicial Notice.

DEMURRER

The primary question revolves around whether the allegations in the 5AC, "fairly describe what [the] entity is alleged to have done." (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446.) While a government claim need not match the specificity of a pleading in a civil action, it must still provide a reasonable account of what the entity is alleged to have done. When a civil action follows the rejection of a government claim, the complaint can expand upon or provide additional details, but it cannot fundamentally alter the allegations from those specified in the government claim. (*Stockett*, at p. 447; see *Brownell v. Los Angeles Unified School Dist.* (1992) 4 Cal.App.4th 787, 794.) In essence, the factual basis for recovery in the complaint should be consistent with what was presented in the government claim. (*Stockett*, supra at p. 447)

Defendant argues that the claim presented by plaintiff does not: (1) mention Government Code section 815.6; (2) use the term "duty;" (3) use the phrase "mandatory duty"; (4) use the terms "enactment" or "statute," (5) identify any enactment or statutory basis for defendant's liability; (6) cite to a single statute or regulation now identified in the 5AC that set forth mandatory duties; (7) identify any mandatory duty imposed by any enactment; (8) assert that the defendant breached any mandatory duty outlined in any enactment, or (9) state that any breach of a mandatory duty outlined in an enactment was the proximate cause of plaintiff's injuries.

The court's analysis of the "fairly reflects" test reveals that the various sentences in the claim ultimately gave rise to specific acts of negligence and did not merely "shift the allegations." In other words, the claim initially asserted defendant's failure to assess, adequately staff, and to provide proper oversight. Subsequently, more specific allegations emerged. The court concludes that the 5AC does indeed "fairly reflect" the broad, general assertions made in the original claim.